

24-304 LABORATORY CORP. OF AMERICA V. DAVIS

DECISION BELOW: 2024 WL 489288

LOWER COURT CASE NUMBER: 22-55873

QUESTION PRESENTED:

Whether a federal court may certify a class action when some of its members lack any Article III injury.

THE PETITION FOR A WRIT OF CERTIORARI IS GRANTED LIMITED TO THE FOLLOWING QUESTION: WHETHER A FEDERAL COURT MAY CERTIFY A CLASS ACTION PURSUANT TO FEDERAL RULE OF CIVIL PROCEDURE 23(B)(3) WHEN SOME MEMBERS OF THE PROPOSED CLASS LACK ANY ARTICLE III INJURY. EXPEDITED BRIEFING.
DISMISSED AS IMPROVIDENTLY GRANTED

CERT. GRANTED 1/24/2025